

LAW

INTRODUCTION

Law is intended to ensure fairness and to promote and maintain justice in society. Legal studies focuses on how rules are created, how they evolve, and how they are enforced and adjudicated within the legal system. Through the study of law, students examine how various forces shape law, and how law shapes interactions between and among people, institutions, and governments. The study of law enables students to develop an understanding of various areas of law, the relevance of law to everyday life, and the influence of entrenched rights and responsibilities on the Canadian legal system.

Strands

The Grade 11 and 12 law courses each have five strands. In all of these courses, strand A, The Inquiry Process and Skill Development in Legal Studies, is followed by four content strands, which are organized thematically.

Citizenship Education

The expectations in the Grade 11 and 12 law courses provide opportunities for students to explore a number of concepts connected to the citizenship education framework (see page 13).

The Concepts of Legal Thinking

The four concepts of legal thinking – legal significance, continuity and change, interrelationships, and legal perspective – underpin thinking and learning in all law courses in the Canadian and world studies program. At least one concept of legal thinking is identified as the focus for each overall expectation in strands B–E of these courses. The following chart describes each concept and provides sample questions related to it. These questions highlight opportunities for students to apply a specific concept in their studies. (See page 16 for a fuller discussion of the concepts of disciplinary thinking.)

Legal Significance
This concept requires students to determine the importance of key legal principles, cases, social forces, and events in the evolution of law. Legal significance is usually determined by the impact that a law, court decision, or legal principle has on legal structures and/or the lives of citizens, or by the impact of social and/or political forces on the development of law. Related Questions* – What aspect of human rights was addressed in the Oakes case (1986)? What impact did the Supreme Court of Canada decision in that case have on Canadian law relating to subsequent Charter challenges to human rights violations? (CLU3M, C1.3) – Why is it important for an accused person to be considered “innocent until proven guilty”? (CLU3E, B1.3) – Should people be legally required to vote in an election? (CLU3E, C1.1) – What are some issues in employment or contract law that you might have to deal with in your everyday life? What forms of legal assistance are available to help you deal with them? (CLN4C, B1.2)
Continuity and Change
This concept requires students to analyse how and why laws, justice system structures and practices, legal precedents, and legislative agendas change over time. Students consider forces that reinforce continuity and factors that have both short-term and long-term effects on legal systems and the administration of justice. Related Questions – How did Donald Marshall’s overturned conviction (in 1983) affect rules governing judicial procedures in the Canadian criminal justice system? (CLU3M, B4.3) – What legal changes are currently being considered to combat cyberbullying? (CLU3E, B2.4) – Why was Ontario’s Environmental Bill of Rights (1993) considered groundbreaking in terms of environmental law? (CLN4U, E2.1) – How have specific events such as the 9/11 attacks changed laws and regulations related to security? (CLN4C, D3.2)

* The “related questions” are drawn directly from the overview charts that precede the Grade 11 and 12 law courses and from the sample questions that accompany many specific expectations.

Interrelationships

This concept requires students to consider how laws affect society and how society affects laws. Students examine the roles of the different branches of government in the development of law in Canada and how laws affect or accommodate different groups. In addition, this concept requires students to consider the interactions between various sides in trials and other legal disputes.

Related Questions

- How does family law reflect societal values, beliefs, and norms? (CLU3M, Overview)
- How can individuals and groups in Canada influence the executive and legislative branches of government to bring about legal change? (CLU3M, B3.1)
- What are some key influences on the development of law? (CLN4U, Overview)
- What constitutes a reasonable limitation of free speech in a democracy? (CLN4C, C1.2)

Legal Perspective

This concept requires students to consider legal principles such as fairness, justice, equality, the presumption of innocence, and the rule of law when analysing a variety of legal issues, controversies, and cases. Students will also come to understand the role of law in balancing competing rights and freedoms.

Related Questions

- What are some examples of current media coverage of issues in Canadian criminal law? In your view, how accurate and/or appropriate is this media coverage? (CLU3M, E3.4)
- Why did the courts rule against both Sue Rodriguez (in *Rodriguez v. British Columbia*) and Robert Latimer (in *R. v. Latimer* [1997 and 2001]) despite considerable public sympathy for their positions? (CLU3E, C2.2)
- What is the role of the courts in balancing competing rights and freedoms? (CLN4U, C3.1)
- In view of developments in technology, are existing laws adequate to protect individuals, corporations, and governments from invasions of privacy? Why or why not? (CLN4U, E4.1)
- What happens legally when human rights compete with each other? (CLN4C, Overview)

The Inquiry Process in Legal Studies

In each law course in the Canadian and world studies curriculum, strand A focuses explicitly on the inquiry process in legal studies, guiding students in their investigation of laws and regulations, rights and freedoms, court decisions, and legal concepts, processes, and issues. This inquiry process is *not* intended to be applied in a linear manner: students will use the applicable components of the process in the order most appropriate for them and for the task at hand. Although strand A covers all of the components of the inquiry process, it is important to note that students apply skills associated with the inquiry process throughout the content strands in each course. (See page 32 for a fuller discussion of the inquiry process in the Canadian and world studies program.)

The following chart identifies ways in which students may approach each of the components of the inquiry process in legal studies.

Formulate Questions
Students formulate questions: – to explore various issues, concepts, laws and regulations, and legal cases that are related to the overall expectations in order to identify the focus of their inquiry – to help them determine which key concept (or concepts) of legal thinking is relevant to their inquiry – that reflect the selected concept(s) of legal thinking – to develop criteria that they will use in evaluating evidence and information; in making judgements, decisions, or predictions; in reaching conclusions; and/or in solving problems
Gather and Organize
Students: – collect relevant evidence and information from a variety of primary sources and secondary sources,^a including community resources^b – determine if their sources are credible, accurate, and reliable – identify the purpose and intent of each source – identify the points of view in the sources they have gathered – use a variety of methods to organize the evidence and information they have gathered – record the sources of the evidence and information they are using – decide whether they have collected enough evidence and information for their inquiry

a. Primary sources may include, but are not limited to, legal cases, legislation, policy documents, and treaties. Secondary sources may include, but are not limited to, analyses of legal opinions, editorials, news articles, reference books, and documentaries and other films. Depending on the context, digital sources, including social media and websites, can be either primary or secondary sources.

b. Community resources may include, but are not limited to, a range of resources from community groups and associations, government or law offices, and non-governmental organizations.

Interpret and Analyse
Students: – analyse evidence and information, applying the relevant concepts of legal thinking (see preceding chart) – use different types of tools to help them interpret and/or analyse their evidence and information – identify the key points or ideas in each source – interpret data and representations of data (e.g., graphs, matrices, statistical tables) to help them analyse issues, events, and/or developments – analyse their sources to determine the importance of an issue, law, and/or legal decision for individuals and/or groups, including different groups – identify biases in individual sources – determine if all points of view are represented in the source materials as a whole, and which, if any, are missing
Evaluate and Draw Conclusions
Students: – synthesize evidence and information and make informed, critical judgements based on that evidence and information – make connections between different factors and contexts when analysing issues, developments, laws, and/or legal decisions – determine the short- and long-term impact of issues, laws and regulations, practices, and/or legal decisions for different individuals, communities, groups, and/or regions – assess the ethical implications of issues, laws, and/or legal decisions – reach conclusions about the subject of their inquiry, and support them with their evidence – make predictions based on their evidence and/or information
Communicate
Students: – use appropriate forms (e.g., oral, visual, written, multimedia) for different audiences and purposes – communicate their arguments, conclusions, and predictions clearly and logically – use legal terminology and concepts correctly and effectively – cite sources, using appropriate forms of documentation

Understanding Canadian Law in Everyday Life, Grade 11

Workplace Preparation

CLU3E

This course enables students to develop a practical understanding of laws that affect the everyday lives of people in Canada, including their own lives. Students will gain an understanding of the need for laws, and of their rights, freedoms, and responsibilities under Canadian law. Topics include laws relating to marriage, the workplace, cyberbullying, and criminal offences. Students will begin to develop legal reasoning skills and will apply the concepts of legal thinking and the legal studies inquiry process when investigating legal issues that are relevant to life in Canada today.

Prerequisite: Canadian History since World War I, Grade 10, Academic or Applied, or the locally developed compulsory course (LDCC) in Canadian history

OVERVIEW

The course has five strands. Instruction and learning related to the expectations in strand A are to be interwoven with instruction and learning related to expectations from the other four strands. Strand A must not be seen as independent of the other strands. Student achievement of the expectations in strand A is to be assessed and evaluated *throughout* the course.

Strand A

A. The Inquiry Process and Skill Development in Legal Studies
Overall Expectations
A1. The Inquiry Process in Legal Studies: use the legal studies inquiry process and the concepts of legal thinking when investigating legal issues in Canada
A2. Developing Transferable Skills: apply in everyday contexts skills developed through the study of law, and identify careers in which a background in law might be an asset

(continued)

Overview *(continued)*

Throughout this course, when planning instruction, teachers should weave the expectations from strand A in with the expectations from strands B–E.

Strands B–E

Overall Expectations and Related Concepts of Legal Thinking	Big Ideas*	Framing Questions*
B. Legal Foundations		
B1. Legal Principles: explain the role and importance of law and the fundamental principles of justice in Canada (FOCUS ON: <i>Legal Significance; Interrelationships</i>)	Law is based on principles derived from society's beliefs about what is fair and just.	How does the law affect me in my everyday life? What political and social values have influenced Canadian law the most?
B2. Development of Law: describe how a variety of factors have influenced and continue to influence the development of Canadian law (FOCUS ON: <i>Legal Significance; Continuity and Change</i>)	Law changes over time in response to a variety of factors, including what society values and believes in, technological advances, and political trends.	How and why do laws change?
C. Human Rights		
C1. Human Rights: explain the legal importance of the Canadian Charter of Rights and Freedoms and the Ontario Human Rights Code and describe, in general, the procedures for resolving human rights complaints (FOCUS ON: <i>Legal Significance; Interrelationships; Legal Perspective</i>)	The Canadian Charter of Rights and Freedoms reflects Canadian human rights principles.	What are human rights? How does the Ontario Human Rights Code protect me? How does the Canadian Charter of Rights and Freedoms protect me?
C2. Development of Human Rights Law: explain the relevance of various legal issues and societal factors to the development of human rights law in Canada (FOCUS ON: <i>Legal Significance; Continuity and Change; Legal Perspective</i>)	The belief in the protection and promotion of human rights in Canada and the world has developed gradually through the efforts of individuals and groups.	How does the law balance competing human rights? Who stands up for human rights? How can we use the law to respond to rights abuses?

* See page 17 for a discussion of the purpose of big ideas and framing questions.

Overall Expectations and Related Concepts of Legal Thinking	Big Ideas*	Framing Questions*
D. Civil Law		
D1. Introduction to Tort Law: describe the legal foundations and development of tort law and the role of individuals, groups, and courts in its processes (FOCUS ON: <i>Legal Significance</i>)	Negligence is the most common area of tort law and deals with cases where harm is caused by carelessness rather than the intention to do harm.	Why can a person be found not guilty in a criminal trial and be found liable in a civil case based on the same facts?
D2. Introduction to Family Law: describe the legal foundations and development of family law and the role of individuals, governments, and courts in its processes (FOCUS ON: <i>Legal Significance; Continuity and Change</i>)	Family law exists to protect all members in domestic relationships, even when the relationships end.	What sorts of issues or disputes are covered by family law?
D3. Introduction to Employment Law: describe the legal foundations and development of employment law and the role of employers, employees, and courts and adjudicatory tribunals in its processes (FOCUS ON: <i>Interrelationships; Legal Perspective</i>)	Employment law attempts to balance the rights of business owners and workers.	How are workers protected in the workplace?
D4. Introduction to Contract Law: describe the legal foundations and development of contract law and the role of individuals, groups, and courts in its processes (FOCUS ON: <i>Legal Significance; Legal Perspective</i>)	Contract law outlines voluntary legal obligations between two people or two groups.	Why is it important to be aware of all the obligations in a contract before signing it?
E. Criminal Law		
E1. Foundations of Criminal Law: demonstrate an understanding of some of the foundational concepts of criminal law in Canada (FOCUS ON: <i>Legal Significance</i>)	The punishment of criminals is a distinct part of criminal law.	Does there need to be a separate criminal justice system for youth?
E2. Legal Processes and Procedures: describe key organizational structures, roles, and steps involved in the criminal trial process, and the relationships among the various elements (FOCUS ON: <i>Interrelationships</i>)	The rules governing the criminal trial process represent an attempt to balance the rights of the accused and the rights of the victim and society.	How are the rights of the accused protected during a trial?
E3. Development of Criminal Law: explain how various factors have influenced the development of Canadian criminal law and the criminal justice system (FOCUS ON: <i>Continuity and Change; Legal Perspective</i>)	Precedent-setting legal cases, technological advances, and societal trends cause changes in Canadian criminal law and the criminal justice system.	What options for sentencing reflect new ideas about justice and criminals?

A. THE INQUIRY PROCESS AND SKILL DEVELOPMENT IN LEGAL STUDIES

OVERALL EXPECTATIONS

Throughout this course, students will:

- A1. The Inquiry Process in Legal Studies:** use the legal studies inquiry process and the concepts of legal thinking when investigating legal issues in Canada;
- A2. Developing Transferable Skills:** apply in everyday contexts skills developed through the study of law, and identify careers in which a background in law might be an asset.

SPECIFIC EXPECTATIONS

A1. The Inquiry Process in Legal Studies

Throughout this course, students will:

A1.1 formulate different types of questions to guide investigations into legal issues in Canada (e.g., factual questions: *What are my legal rights and responsibilities in Canada?*; comparative questions: *What are the differences between arbitration and mediation?*; causal questions: *What are some ways in which the law affects my daily activities?*)

A1.2 select and organize relevant evidence and information from primary and secondary sources (e.g., primary: *case law, legislation*; secondary: *textbooks, websites*)

A1.3 assess the credibility of sources relevant to their investigations (e.g., *establish criteria to help determine the reliability, accuracy, and relevance of information; compare how the evidence is constructed or presented in different sources; consider the influence of factors such as bias, audience, purpose, context, and values*)

Sample questions: “When might you rely on a newspaper article about a trial as a source of information, and when would you need to consult the court transcript of the trial? Why?”

A1.4 interpret and analyse legal issues, using evidence and information relevant to their investigations and a variety of tools and strategies and taking into account relevant ethical and equity concerns

A1.5 use the concepts of legal thinking (i.e., legal significance, continuity and change, interrelationships, and legal perspective) when analysing,

evaluating evidence about, and formulating conclusions and/or judgements regarding legal issues (e.g., *consider the concept of legal significance when determining the legal difference between paying rent as individual renters and paying collectively, as a group, when several people rent accommodation in the same house; take the concept of continuity and change into account when analysing the possible impact of the legalization of marijuana on Canadian society; use the concept of interrelationships when analysing how police procedures for handling evidence might affect the outcome of a trial in court; use the concept of legal perspective when analysing why some of the justices on the Supreme Court have written a dissenting opinion that disagrees with the Court’s majority ruling on a case*)

Sample questions: “Which concepts of legal thinking might be most relevant to your investigation into why a judge has imposed a publication ban on information relating to a case before the courts? Why?” “Why is it important to consider the concept of legal significance when analysing the impact of the decision to recognize ‘battered wife syndrome’ as a legal defence?”

A1.6 evaluate and synthesize their findings to formulate conclusions and/or make informed judgements or predictions about the legal issues they are investigating

Sample question: “What are the key concerns that are raised in the debate about legalizing assisted suicide?”

A1.7 communicate their ideas, arguments, and conclusions using various formats and styles, as appropriate for the audience and purpose (e.g., *a mock trial based on an actual human rights*

case; a presentation on how a community dealing with a local crime might use a healing circle; a debate about French-language rights; a case study illustrating the effects of changes in Canadian family law; a blog highlighting stereotypes in media portrayals of people accused and/or convicted of committing crimes)

A1.8 use accepted forms of documentation (e.g., endnotes or footnotes, author/date citations, reference lists, bibliographies, credits) to acknowledge different types of sources (e.g., case law, legislation, websites, blogs, books, articles, oral evidence)

A1.9 use terminology appropriate to the audience and purpose when communicating the results of their investigations (e.g., vocabulary specific to their inquiry, terminology related to the law and legal processes)

A2. Developing Transferable Skills

Throughout this course, students will:

A2.1 describe ways in which investigations related to the law help them develop skills, including the essential skills in the Ontario Skills Passport (e.g., graphing, oral communication, technological, numeracy, literacy, and decision-making skills), that can be transferred to the world of work and to everyday life

A2.2 apply in everyday contexts skills and work habits developed through law-related inquiries (e.g., conflict-resolution skills used to mediate or arbitrate disputes, reasoning skills used to balance competing rights, oral communication skills)

A2.3 use the concepts of legal thinking when analysing current events related to legal issues in order to enhance their understanding of these events and their role as informed citizens (e.g., to identify competing rights relevant to a controversial issue in the news, to understand a new ruling related to due process and the admissibility of evidence)

Sample questions: “Why could the computer record of Internet sites previously visited by the accused not be used in evidence in the case of *R. v. M. Rafferty* (2012) (the Tori Stafford case)?” “What process was used to evaluate the policing and civil rights concerns that emerged following the G20 summit meeting in Toronto in 2010? Why is it important to have a review process?”

A2.4 identify some careers in which a law background might be useful (e.g., police or peace officer, court reporter, corrections officer, game warden, lawyer, paralegal, politician, policy analyst, staff member at a non-governmental organization, journalist, adjudicator, mediator)

B. LEGAL FOUNDATIONS

OVERALL EXPECTATIONS

By the end of this course, students will:

- B1. Legal Principles:** explain the role and importance of law and the fundamental principles of justice in Canada (**FOCUS ON:** *Legal Significance; Interrelationships*)
- B2. Development of Law:** describe how a variety of factors have influenced and continue to influence the development of Canadian law (**FOCUS ON:** *Legal Significance; Continuity and Change*)

SPECIFIC EXPECTATIONS

B1. Legal Principles

FOCUS ON: *Legal Significance; Interrelationships*

By the end of this course, students will:

- B1.1** explain the legal significance of the term *law* (e.g., *how rules differ from laws, why societies have laws*) and the role of law in Canadian society
- Sample questions:* “Why are laws necessary in society? What might happen if we did not have laws?” “Why might some laws not be necessary anymore?”
- B1.2** explain the relevance to daily life of different types of law (e.g., public law: *criminal, constitutional*; civil law: *tort, family, employment, contract*)
- B1.3** explain the fundamental principles of justice (e.g., *the rule of law, due process, the presumption of innocence, the principle of equality before the law, the principle of judicial independence, the rule of judicial precedent, the principle of judicial discretion*) and their importance in the Canadian legal system
- Sample question:* “Why is it important for an accused person to be considered ‘innocent until proven guilty’?”
- B1.4** describe the structure of the Canadian court system, including the function of each court (e.g., *trial courts, appeal courts, the Supreme Court*), and explain the importance of the independence of the judiciary from other branches of government
- Sample questions:* “How does a person become a Supreme Court justice?” “What are the differences between the powers of the prime minister,

the federal legislature, and Canada’s Supreme Court?”

- B1.5** describe the legal importance of some key aspects of the Canadian constitution, with particular reference to responsible government, the division of powers between the federal and provincial governments, and the entrenchment of rights

Sample questions: “Under the constitution, what level of government is responsible for health care? What is the relationship between provincial and federal governments in this area?” “How does the constitution ensure that different levels of government must cooperate in addressing First Nations land claims?”

B2. Development of Law

FOCUS ON: *Legal Significance; Continuity and Change*

By the end of this course, students will:

- B2.1** describe the influence on the development of Canadian law of early legal systems (e.g., *Aboriginal law, English common law, French civil law*)
- Sample question:* “Why is the system of civil law in Quebec different from that in the rest of Canada?”
- B2.2** identify elements of the Canadian legal system that have remained constant over time (e.g., *the legislative role of Parliament, the adversarial system in the courts, the adjudicatory function of courts*)
- Sample questions:* “What are the steps involved in creating a new law? What are the steps involved in changing an existing law?”

B2.3 describe ways in which changes in societal attitudes and values have influenced the development of Canadian law (e.g., with reference to laws relating to censorship, gambling, environmental protection, workplace safety, the definition of marriage, capital punishment, the production and sale of marijuana for medical use)

Sample questions: “Why can’t fifteen-year-olds work in some types of workplaces? What are the minimum employment standards (pay, hours of work, time off) for typical jobs held by teenagers? How do current laws on youth employment differ from those of thirty years ago? What societal values are reflected in the laws regulating youth employment?” “What impact did the conviction of fourteen-year-old Steven Truscott have on Canadian views about capital punishment?”

B2.4 describe ways in which advances in science (e.g., in reproductive medicine) and technology (e.g., in information technology) have influenced the development of Canadian law or may influence it in future (e.g., the Assisted Human Reproduction Act, 2004; laws relating to the protection of privacy; laws relating to the protection of intellectual property such as the Copyright Modernization Act, 2012)

Sample questions: “Is there a need for laws to regulate the downloading of music or other media?” “What legal changes are currently being considered to combat cyberbullying?” “What are some legal issues related to the respective rights of adoptive parents, biological parents, and adopted children?” “What are some legal issues governments would need to consider in developing regulations for the use of driverless vehicles?” “What are some legal issues regarding genetically modified seeds?”

C. HUMAN RIGHTS

OVERALL EXPECTATIONS

By the end of this course, students will:

- C1. Human Rights:** explain the legal importance of the Canadian Charter of Rights and Freedoms and the Ontario Human Rights Code and describe, in general, the procedures for resolving human rights complaints (**FOCUS ON:** *Legal Significance; Interrelationships; Legal Perspective*)
- C2. Development of Human Rights Law:** explain the relevance of various legal issues and societal factors to the development of human rights law in Canada (**FOCUS ON:** *Legal Significance; Continuity and Change; Legal Perspective*)

SPECIFIC EXPECTATIONS

C1. Human Rights

FOCUS ON: *Legal Significance; Interrelationships; Legal Perspective*

By the end of this course, students will:

- C1.1** identify some of the rights and freedoms protected by the Canadian Charter of Rights and Freedoms and the Ontario Human Rights Code and their corresponding responsibilities or obligations (e.g., *the right to vote and the responsibility to vote; the right to a jury trial and the responsibility to serve on a jury; language rights and the responsibility to respect the language rights of others*)

Sample question: “Should people be legally required to vote in an election?”

- C1.2** identify barriers to the equal enjoyment of human rights in Canada (e.g., *discrimination on grounds of disability, class, age, race, ethnocultural background, religion, language, gender, or gender identity; discrimination resulting from geographic isolation, unequal access to education*) and the human rights issues raised by various historical and contemporary instances where the rights of different groups were violated (e.g., *Canada’s Chinese Head Tax laws, 1885, 1900, 1903, and the Chinese Exclusion Act, 1923; the 1928 Canadian Supreme Court ruling that women were not eligible for Senate appointments; the residential schools system; the “Sixties Scoop” of Aboriginal children; the internment of Japanese Canadians during World War II; Attorney General of Canada v. Lavell, 1974, and its aftermath in the 1985 amendment to section 12(1)(b) of the Indian Act; the 2007 Asian Canadian anglers case*)

Sample questions: “What human rights issues were raised in the Persons Case? What was the Supreme Court of Canada ruling in that case? How and why was this ruling overturned?”

- C1.3** explain the procedures for resolving complaints about human rights violations (e.g., *identifying the violation, determining the appropriate forum for resolution, obtaining representation [if necessary or appropriate], presenting a case*)

Sample questions: “Why are there different forums for the resolution of human rights violations? How is the appropriate forum for a case determined?”

- C1.4** explain how human rights legislation can conflict with other legislation (e.g., *the Criminal Code offence of child pornography versus the Charter guarantee of freedom of expression; the Charter section 2 right to freedom of religion versus the Charter section 7 guarantee of the right to life*)

Sample question: “Why might there be a conflict between the Charter guarantee of the right to life and the rights of parents to refuse medical treatment such as blood transfusions for their child on religious grounds?”

- C1.5** analyse situations in which a right or freedom may be limited in Canadian law (e.g., *Charter section 1 [“limitation clause”] has been used to limit the right to free expression in cases of “hate speech”; Charter section 33 [“notwithstanding clause”] has been used to uphold limitations in English language rights in Quebec; Charter section 25, which states that the Charter cannot override existing Aboriginal rights and freedoms*)

C2. Development of Human Rights Law

FOCUS ON: *Legal Significance; Continuity and Change; Legal Perspective*

By the end of this course, students will:

C2.1 explain how the actions of various individuals and groups have contributed to the development of human rights law in Canada (e.g., Clara Brett Martin, Viola Desmond, Richard Sauvé, Donald Marshall, Jr., *the Association in Defence of the Wrongfully Convicted*, *the Assembly of First Nations*, *Women's Legal Education and Action Fund*)

C2.2 describe the legal significance of some important Canadian human rights cases as examples of how human rights law has been or is being interpreted and applied in Canada (e.g., *cases involving euthanasia/assisted suicide* [*Rodriguez v. British Columbia*, 1993]; *racial profiling* [*R. v. Brown*, 2003, or *Hill v. Hamilton Wentworth Regional Police Services Board*, 2007]; *religious rights* [*Roncarelli v. Duplessis*, 1959, or *Canadian National Railway Co. v. Canada* (Human Rights Commission) and *Bhinder*, 1985]; *freedom of expression* [*Saskatchewan (Human Rights Tribunal) v. Whatcott*, 2010]; *mandatory minimum sentences as "cruel and unusual punishment"* [*R. v. Latimer*, 2001]; *privacy* [*R. v. Patrick*, 2009; *R. v. M. (M.R.)*, 1998]; *discrimination on the basis of sexual orientation* [*Egan v. Canada*, 1995])

Sample questions: "How can racial profiling infringe on a person's rights?" "Why did the courts rule against both Sue Rodriguez (in *Rodriguez v. British Columbia*) and Robert Latimer (in *R. v. Latimer* [1997 and 2001]) despite considerable public sympathy for their positions?"

C2.3 describe how some human rights codes and related legislation have been influenced or might be influenced in future by factors such as evolving social attitudes and values, changing technology, and changing demographics (e.g., social attitudes and values: *laws relating to women's rights, reproductive rights, gender identity rights*; changing technology: *laws relating to privacy rights*; demographics: *laws relating to mandatory retirement age*)

Sample questions: "When did a (provincial or federal) human rights code in Canada first include explicit protection against discrimination and harassment on the grounds of sexual orientation? What were some reasons for the change?" "Do you think existing laws for the protection of individual privacy are adequate in the Internet age? Why, or why not?"

D. CIVIL LAW

OVERALL EXPECTATIONS

By the end of the course, students will:

- D1. Introduction to Tort Law:** describe the legal foundations and development of tort law and the role of individuals, groups, and courts in its processes (**FOCUS ON:** *Legal Significance*)
- D2. Introduction to Family Law:** describe the legal foundations and development of family law and the role of individuals, governments, and courts in its processes (**FOCUS ON:** *Legal Significance; Continuity and Change*)
- D3. Introduction to Employment Law:** describe the legal foundations and development of employment law and the role of employers, employees, and courts and adjudicatory tribunals in its processes (**FOCUS ON:** *Interrelationships; Legal Perspective*)
- D4. Introduction to Contract Law:** describe the legal foundations and development of contract law and the role of individuals, groups, and courts in its processes (**FOCUS ON:** *Legal Significance; Legal Perspective*)

SPECIFIC EXPECTATIONS

D1. Introduction to Tort Law

FOCUS ON: *Legal Significance*

By the end of this course, students will:

- D1.1** explain the legal definition of a tort and the difference between intentional torts (*e.g., assault and battery, trespass, libel and slander*) and unintentional torts (*e.g., negligence – such as by an employer, a landlord, the driver of a motor vehicle*)

Sample questions: “What is the purpose of tort law? What sorts of offences does it cover? Why is the issue of intent so important in tort law?”
- D1.2** explain the function and significance of various legal processes (*e.g., statement of claim, statement of defence, examination for discovery, burden of proof*), different levels of courts, and alternative procedures (*e.g., arbitration, mediation, healing circles, truth and reconciliation formats*) involved in settling civil disputes, and describe remedies available for enforcing a judgement (*e.g., damages awards, injunctions*)

Sample questions: “Why are there different procedures for those seeking remedies under tort law? How are some procedures that are distinct from a trial in the courts? Under what

circumstances might the parties to a dispute opt for one of these alternative procedures?”

- D1.3** explain the legal reasoning behind some key decisions in tort law (*e.g., cases dealing with negligence [Young v. Bella, 2006]; social host liability [Childs v. Desormeaux, 2006]; vicarious liability [EB v. Order of the Oblates of Mary Immaculate in the Province of British Columbia, 2005]*)

D2. Introduction to Family Law

FOCUS ON: *Legal Significance; Continuity and Change*

By the end of this course, students will:

- D2.1** describe the legal definitions of a valid marriage and a common-law relationship in family law as established by federal and provincial law, and explain the legal implications for partners in each type of relationship

Sample question: “How do the laws relating to these two types of relationships affect individuals in Canada?”
- D2.2** describe the legal procedures and/or documents used in resolving disputes upon the dissolution of a marriage or the death or incapacity of a family member (*e.g., prenuptial*

agreement, separation agreement, divorce proceedings and decrees, custody and support agreements, living will, power of attorney, last will and testament)

Sample questions: “What legal difficulties arise if a person becomes incapable and/or terminally ill and has not declared a power of attorney (for financial and/or personal care) or made a will?” “What can an individual do before he or she gets married to minimize the financial risks of a possible divorce in the future?”

D2.3 analyse how changing societal values and legal decisions have promoted or prevented changes in family law in Canada (*e.g., in the areas of the definition of marriage, the definition of and penalties for abuse, division of property upon divorce, same-sex spousal rights, reproductive rights, child custody laws, rules regarding adoption*)

Sample questions: “What is the current legal process for adopting a baby?” “What is the current law regarding the disclosure of the identity of a birth parent? In what way is it different from earlier laws? What are some reasons for the changes?” “What rights does a surrogate parent have with regard to custody of or access to the newborn child?”

D3. Introduction to Employment Law

FOCUS ON: *Interrelationships; Legal Perspective*

By the end of this course, students will:

D3.1 demonstrate an understanding of the protections given to workers by provincial and federal employment legislation

Sample questions: “How does the Ontario Employment Standards Act address worker protection? Why is it important for workers to be aware of legal protections under this and federal employment laws?” “What are the requirements for employers under the Ontario Occupational Health and Safety Act with respect workplace violence and harassment?”

D3.2 describe some issues related to the protection of employees’ rights (*e.g., issues such as worker safety, compensation and entitlements*) and legal ways to resolve disputes regarding employment conditions

Sample questions: “What recourse does an employee have if an employer is late with wage or salary payments?” “What types of benefits and compensation are available to injured employees under the Workplace Safety and Insurance Act?” “What are some issues that

relate to protecting young workers? How are they addressed in current Ontario legislation?” “What impact will laws regarding mandatory worker training have in the workplace?”

D3.3 explain the legal status and legal responsibilities of unions in the workplace and in labour contract negotiations, as defined in employment law

D4. Introduction to Contract Law

FOCUS ON: *Legal Significance; Legal Perspective*

By the end of this course, students will:

D4.1 identify the key elements of a legal contract (*e.g., consent, offer and acceptance, consideration*) and explain their significance

D4.2 identify various types of contracts in contemporary society (*e.g., mobile phone contracts, loan agreements, leasing agreements, product warranties, credit card contracts, landlord-tenant agreements*) and explain their legal and/or economic importance

Sample questions: “Why is it important to read and understand all aspects of a payday loan agreement?” “Why do some products (*e.g., computer software*) have a legal contract attached to the purchase?” “Why are cellphone contracts in Canada being disputed by individuals and government regulatory bodies?”

D4.3 describe from a legal perspective the conditions that must be met in some different types of contracts, the conditions under which these contracts can be legally terminated, and the types of penalties that may be imposed in cases of breach of contract (*e.g., in contracts between buyer and seller, between landlord and tenant, between mortgage lender [or other creditor] and borrower*)

Sample questions: “Under what circumstances might it be worthwhile to pay a penalty in order to be able to terminate a contract?” “What are the differences in the conditions associated with debt financing and equity financing agreements?”

E. CRIMINAL LAW

OVERALL EXPECTATIONS

By the end of this course, students will:

- E1. Foundations of Criminal Law:** demonstrate an understanding of some of the foundational concepts of criminal law in Canada (**FOCUS ON:** *Legal Significance*)
- E2. Legal Processes and Procedures:** describe key organizational structures, roles, and steps involved in the criminal trial process, and the relationships among the various elements (**FOCUS ON:** *Interrelationships*)
- E3. Development of Criminal Law:** explain how various factors have influenced the development of Canadian criminal law and the criminal justice system (**FOCUS ON:** *Continuity and Change; Legal Perspective*)

SPECIFIC EXPECTATIONS

E1. Foundations of Criminal Law

FOCUS ON: *Legal Significance*

By the end of this course, students will:

- E1.1** explain the legal meaning of some terms used to describe the elements of a crime (e.g., *mens rea*, *actus reus*) and different types of crime (e.g., *indictable*, *summary*, *hybrid*)
- E1.2** describe various serious offences defined under the Criminal Code of Canada (e.g., *assault*, *murder*, *break and enter*, *theft*), other federal statutes (e.g., *weapons offences*, *violations of food and drug regulations*), and provincial laws (e.g., *motor vehicle offences*)
- E1.3** describe the objectives and some key provisions of the Youth Criminal Justice Act (e.g., *ages of criminal responsibility*, *sentencing alternatives*, *protection of the privacy of accused youths*, *criminal procedures better tailored to the needs of youths*, *rules regarding the removal of youths to adult court under certain circumstances*) and assess the appropriateness of the legislation as a response to youth crime

Sample questions: “Why does the Youth Criminal Justice Act make it an offence to make public the identity of a youth accused of a crime? What are some instances in which a judge might authorize the release of this information?”

E2. Legal Processes and Procedures

FOCUS ON: *Interrelationships*

By the end of this course, students will:

- E2.1** describe the requirements involved in bringing an accused person to trial (e.g., *protocols for legal search and arrest*, *protocols for the collection and sharing of evidence*, *conditions governing pre-trial release*) and explain why these may differ in some cases (e.g., *bail conditions may be stringent where there is a risk of violence or a flight risk*)
Sample question: “Why might people who are considered to be a flight risk not be granted bail?”
- E2.2** describe the roles of the key participants in a criminal trial (e.g., *defence counsel*, *the prosecutor*, *the jury*, *the judge*) in relation to the steps in the criminal trial process (e.g., *jury selection*, *presentation of evidence*, *delivery of verdict*, *sentencing procedures and alternatives*)
Sample questions: “Why is it difficult to select a jury for some high-profile cases? Why might it be necessary in some cases to hold the trial in a different community?”
- E2.3** explain the relationship between the purpose of the sentence (e.g., *rehabilitation*, *punishment*, *deterrence*, *protection of the public*) and various sentencing options (e.g., *participation in an anger management program*, *house arrest*, *participation in a sentencing circle*, *sentencing options related to restorative justice*, *community service*, *incarceration*)

E2.4 describe the legal reasons for granting an appeal in criminal cases (e.g., *mistake of fact*, *mistake of law*) and the available avenues for an appeal

E2.5 describe various sentencing options for young people who contravene the law (e.g., *reprimand*, *fine*, *absolute or conditional discharge*, *restitution*, *compensatory community service*, *probation*, *attendance at a program*, *custody and supervision*, *imposition of an adult sentence*, *the use of a sentencing circle*, *sentencing options related to restorative justice*) and the key factors that influence which option is chosen

E2.6 analyse how media coverage and portrayals of crime and of legal processes and procedures (e.g., in print and electronic news media, social media, television shows, films) influence public perceptions of, assumptions about, and responses to crime/criminals and/or the criminal justice system (e.g., television “police procedural” series give a misleading impression of the time needed for real-life investigations; many popular television programs depict laws and procedures from other countries that do not apply in Canada; crime reporting raises public awareness that may help but also may hamper police investigations; media saturation coverage of high-profile cases may compromise the objectivity of prospective jurors; “tough on crime” positions in the news may influence the public’s response to sentencing)

Sample questions: “In what way is the legal principle of ‘innocent until proven guilty’ compromised when a case receives a great deal of media attention, and the accused person is ‘tried by the media’?” “What are some examples of the racial and gender stereotypes that are perpetuated in many crime shows and films? What effect does this media portrayal have on dominant societal views of who is likely to commit crimes?”

E3. Development of Criminal Law

FOCUS ON: Continuity and Change; Legal Perspective

By the end of this course, students will:

E3.1 identify defences that, over time, have become legally accepted in the Canadian criminal justice system (e.g., *automatism*, *battered spouse syndrome*, *premenstrual stress syndrome*, *duress*, *insanity*)

E3.2 analyse key cases in which legal rights guaranteed under the Canadian Charter of Rights and Freedoms have been invoked to influence the application of the criminal law in Canada (e.g., with reference to *unreasonable search and seizure* [R. v. A.M., 2008, or R. v. Kang Brown, 2008]; *infringement of rights during arrest and detainment* [R. v. Clayton, 2007, or United States of America v. Khadr, 2011]; *right to legal counsel* [R. v. Sinclair, 2010]; *presumption of innocence* [R. v. Oakes, 1986]; *constitutionality of prostitution laws* [Canada (Attorney General) v. Bedford, 2013])